

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRLP066698: IN THE MATTER OF MICAH PAUL MARSHALL

08/14/2026 in Department J6

Hearing on Petition for Appointment of Conservator

Appoint PD.

Subject to the foregoing, the Court intends to grant the petition for appointment.

Discuss whether the Probate Code section 2355 medical treatment powers should be granted based on the current declaration. The capacity declaration checks “e” (for not applicable or not assessed) for most of ¶¶ 10-14. The physician states that the proposed conservatee’s mental capacity “seems difficult to fully assess.” (¶ 19.) Despite the foregoing, she concludes that the proposed conservatee lacks the capacity to consent to any form of medical treatment, stating that he “may have intellectual capability but physically will not be able to communicate directly.” Is this sufficient evidence of the proposed conservatee’s lack of mental capacity to satisfy section 2355?